

Chapter II

Mounting a Counter Offensive – The Negation's Counterplan

(This is generally a synopsis on counterplans condensed from the book, *On That Point!: An Introduction to Parliamentary Debate* by Kate Shuster and John Meany.)

In most debates, the proposition team advocates a change in the status quo and the negation argues that no change is necessary, that the status quo is able to handle the problem. But here's a new thought: the negation is not limited to just defending the status quo. The negation can present a counterplan.

What is a **COUNTERPLAN**? It is a proposal offered by the negation that provides a reason to reject the proposition team's plan and presents what it believes to be a superior plan. The negation essentially says, "If the proposition team's plan existed, it would interfere with other potential plans that might work better."

Let's say your friend is hungry and suggests that you go get hamburgers. But you suggest that Chinese food is a better idea. Both plans compete for the same money and the same time. Now your job is to show that your counterplan for Chinese food is a better way to solve your hunger problem.



Sounds easy to run a counter plan, right? **Here's the catch:** By suggesting a counterplan, you are ADMITTING that the status quo has HARMS that need to be addressed. In other words, you have given the Affirmation half their case – you have agreed to the harms that they have presented. That's huge! So you need to think carefully before presenting a counterplan.



And here's the other catch – You don't know what the Affirmation plan will be until you debate. What if they run as their plan the SAME thing you were planning to run as a counterplan. Do NOT use counterplans unless the wording of the resolution almost DEMANDS what the plan should be. For example, if the motion was "the U.S. government should require all cars be hybrids by 2020," it would be pretty easy to run a counterplan. You could be almost 100% certain what the Affirmation's plan would be about.

So even after these warnings, if you decide to run a counterplan, as the negation, you need to show that the proposition team's plan is bad (hamburgers are high in calories and are bad for your health) and that your plan is better (Chinese food is lower in cholesterol and calories). You get the judge to believe that your plan will BETTER solve the harms presented.

A counterplan must force a choice between two proposals and must compete with the proposition plan. In a counterplan, you:

1. Present your counterplan. – It should include the same elements as an Affirmation plan: Who will do it, what will they do, when will they do it, how will they implement it, and how will they finance it.
2. Next, show how your counterplan effectively **COMPETES** with the Affirmation plan. You will do this by showing the "net benefits" of your plan. In other words, show that, in balance, your counterplan has more benefits than the Affirmation plan. You can show NET BENEFITS by

- Arguing that the proposition plan is a BAD idea because it 1) has significant disadvantages and/or 2) it doesn't have solvency – doesn't solve for the harms presented by the Affirmation.
- Arguing that the counterplan is a GOOD idea because it has advantages that ONLY come from the counterplan – it has advantages that the proposition plan doesn't have.

What you are saying is, "Don't vote for the proposition's plan, because if you do, you will forego this superior policy option." You essentially argue that the adoption of the proposition plan is an "opportunity cost." An "opportunity cost" is the sacrifice made when selecting one policy over another. When you adopt the proposition's plan, you forego other opportunities that might be better.

Example: If your friend decides it is best to DRIVE to the movies, you argue that other opportunities are lost – can't go by bus, dogsled, bicycle, or skateboard – and they might be better than the car choice.



Legislators have to make choices between different and competing plans all the time. When they have a finite amount of resources available to solve a problem, legislators must choose between several options. When you present a counterplan, your judge (just like the legislators) will have that job of choosing whether the Affirmation or the Negation has presented the best plan. As the negation, you show him/her that the affirmation plan is bad because it requires giving up the negation's plan, which is more beneficial – has more net benefits. . In effect, you're telling the judge our plan ***beats the socks off the Affirmation's plan.***

Are there some "stock" counterplans that you can use? You bet there are – they are known as "generic" counterplans.

Think of them as "one shoe fits all!"



1. The "AGENT" counterplan -- All plans have an "agent of action" – a group, department, or body that is put in place to carry out the plan. Usually it is a branch or department of the federal government. In an AGENT counterplan, you argue that the agent the Affirmation has chosen is not good – that you have another agent to do it, and that agent will do a FAR better job. Of course, this means that you need good evidence that their agent is 1) ineffective, 2) costly, 3) not designed for the job, 4) over-burdened by other jobs, or 5) a combination. And you need to prove that your agent can do it MUCH better AND still solve the harms presented by the Affirmation.

Example: The Affirmation says that the U.S. federal government will provide free malaria medications to children to halt malaria. You attack their agent (the U.S. federal government) and present a counterplan to have it done by the World Health Organization.

In order to run this kind of counterplan, it is a good idea to have a list of commonly used agents of action and generate why each is a BAD agent. Then generate arguments about why each of these is also a good one. Now, you'll always be prepared to present an "AGENT" counterplan.

You can also think of this "agent" counterplan as "state versus federal government." If the Affirmation wants the federal government to do it, you present a counterplan to have the state run it, saying that the decentralized approach is better, that states are better positioned (via efficiency, experimentation, enforcement etc.) to do it better. And if the Affirmation is having individual states do it, your counterplan is to have the federal government do it instead because they are more central, they provide uniformity throughout the nation, and/or they can better finance it etc.

2. The "STUDY" counterplan – In this counterplan, you say that more study is necessary – that there is inadequate information to make a LASTING and FINAL decision. You argue that we don't know enough about 1) the harms or 2) the best way to proceed or 3) all the options that might be available. You claim that the Affirmation is locking us into a plan BEFORE we have all the facts. You argue that it would be harmful for the U.S. to adopt the Affirmation plan without more study. Your counterplan, then, is to set up a study of all the options BEFORE committing the U.S. to anything. You argue that it is NET BENEFICIAL because it will create information necessary for eventually choosing the BEST solution.

Usually with this kind of counterplan you need to put in –

- Who will do the study
- A designated length of time for the study – between 6 months to 18 months is generally good
- Mandates that require some action at the study's end – usually based on the recommendations coming out of the study
- The sentence "Opposition speeches will clarify the intent." This last sentence is useful because it allows your team to interpret the counterplan based on the Affirmation's objections.

3. The "CONSULTATION" counterplan – In this type of counterplan, you argue that we should consult another relevant group/commission/entity about whether or not the Affirmation team's plan should be implemented. It gives the alternate group a kind of "veto" power over adoption of the Affirmation's plan. In this counterplan, you argue that the unilateral method proposed by the Affirmation will lead to significant disadvantages AND that consultation would prevent that from happening.



Sometimes, the generic, "one shoe fits all" counterplan won't work, and you need to create a SPECIFIC counterplan to fit the particular aspects of the Affirmation's case and/or plan.

There are a couple kinds of SPECIFIC counterplans:

1. Counterplans that compete based on solvency – In this type of counterplan, you go in an opposite direction from the Affirmation, saying that this different direction will SOLVE for the harms presented better than the Affirmation's plan. If the Affirmation argues that more government regulation is the best solution to environmental pollution, you, as the Negation, might say that deregulation would be better. You offer a counterplan that contains this element.

Several of these "opposite direction" options come to mind:

- Regulation versus deregulation
- Unilateral versus multilateral
- Criminal versus civil penalties
- Compulsory versus voluntary incentives

In this type of counterplan, you need to 1) show that their plan is bad, will not solve the harms, and will result in many disadvantages, 2) show that your counterplan is good and results in multiple advantages while still solving the problem better than the Affirmation, and 3) weigh the potential costs and benefits. Show the judge that on balance your method is better.

2. The "EXCLUSIONARY" counterplan – This counterplan has you endorse some, but not all of the Affirmation team's plan. You show that the excluded parts of the plan are BAD, and by eliminating them (which is what your counterplan does), you get a superior plan. This type of counterplan allows you to focus on parts of the plan that you're familiar with. Think of this counterplan as being "the Affirmation plan EXCEPT for the unworkable, bad parts."

In order to win this, you must show that you get more NET BENEFITS by eliminating the BAD element from the plan because that element is a BIG disadvantage.

Chapter 12

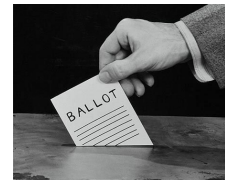
So What's an Affirmation team to do? Defeating the Counterplan



It is important to remember that, when the Negation presents a counterplan, they have handed you, the Affirmation, a huge part of your case on a silver platter. They have AGREED that that harms you presented DO EXIST and need solving. Think about that – all those contentions you presented – the Negation has handed them to you, and you can mark them on your flow sheet as going to the Affirmation. Now all you have to do is show that your plan is better than their plan for solving for the harms! That sounds a bit easier, doesn't it? Here are some strategies:

1. Argue that the Negation's **counterplan is NOT competitive with your plan**. It might be that both plans could happen cooperatively and, thus, aren't competitive. If it is cooperative, then both can be done at the same time. Why is that a BIG deal? Remember, the negation has the BURDEN to present reasons to reject the Affirmation's plan, and the counterplan must be COUNTER to the plan. So here's the Affirmation's logical argument -- if both plans can be done TOGETHER, then the counterplan does NOT provide a reason to vote against the Affirmation.

That's a VOTING issue, my friends, and that means the Affirmation wins!



- Think back to the example of getting food. Is it not possible for a person to go to the mall, and while there, get either hamburgers or Chinese food? Couldn't both options be done, thus working to benefit all parties? Are these plans really competitive?

The negation must provide a COMPELLING reason to reject the Affirmation plan, but if both plans could be done, the negation HAS FAILED to present a COMPELLING reason showing why the Affirmation plan should be rejected.

2. Argue that the Negation's **counterplan is not workable**, that it has significant problems with implementation (it is too costly, it can't be administered effectively, that the Affirmation has provided no oversight for the plan etc.) Remember all the ways that the Negative can attack an Affirmative plan? All those same techniques can be used against a counterplan.
3. Argue that **the Negation plan does NOT solve the harms**. Just as the Negation looks at solvency with the Affirmation plan, the Affirmation must do this with the counterplan. Argue that it doesn't solve the harms presented in this debate.
4. Argue that the **counterplan will create NEW disadvantages** that won't occur with the Affirmation's plan.

Earlier we looked at some generic counterplans. You can use some clear defense strategies to defeat those type of stock counterplans –

1. Your defense for the AGENT counterplan -- You will need to be able to defend the agent you have chosen. You need to have clear reasons why your agent is the BEST. You need to argue that the agent the Negation chose is BAD and will create MANY disadvantages. At the end, tell the judge to look at the net benefits – your agent is the best and will result in more benefits and fewer disadvantages than the Negation's chosen agent.
2. Your defense for the STUDY counterplan -- You will want to defend your course of action so first answer the Negation attacks on your plan. Next, show that there is NO NEED FOR A STUDY. Third, argue that a study would take too long, meanwhile all the harms you presented would still be happening, and they need to be addressed NOW. Finally, argue that the findings of the study will be biased and flawed. Who will choose or appoint the members to conduct the study, what are their qualifications, do they owe favors to anyone etc.?
3. Your defense for the CONSULTATION counterplan -- Your best response is usually to argue that the counterplan will prevent the implementation of the Negation's plan because the primary parties will never agree to a consultant who essentially has "veto" power, and thus the counterplan won't get implemented. Then, you argue that if the counterplan can't be implemented, the Negation won't solve for the harms the Affirmation presented AND won't get any Negative advantages. Thus, the Affirmation has solvency and net benefits, which the Negation doesn't.
4. Your defense for the EXCLUSIONARY counterplan -- First and foremost, initially write a good plan – try to think about the arguments the Negation might bring up. Don't put in mandates that you can't defend. Avoid words like "ALL" or "EVERYONE" or "100%." Look for weaknesses BEFORE you present your plan. In this case, the best offense is a good defense. But remember, when the Negation does an exclusionary counterplan, they have handed you (agreed to) your entire plan EXCEPT for one element – the element they want to exclude. So now you don't need to debate the entire plan, you just need to justify the one element they object to. The Negation needs to prove that the plan is really better without that one element – the burden of proof is on them!



So Affirmation team, don't get cold feet when you hear the negation say, "We have a counterplan." **Counterplans can be defeated!!**

Counterplans – from <http://debate-central.ncpa.org/wp-content/uploads/2011/03/Counterplans.pdf>

What Is a Counterplan?

An affirmative case is based on challenging the status quo. Negative teams can defend the status quo or agree that the status quo should change and present a counterplan, often abbreviated CP.

A counterplan is a policy option offered by the negative team that is not the status quo and not the affirmative plan.

Elements of a Counterplan

There are three main elements to a counterplan that you should understand.

Text. The counterplan text is formal, precise language that says what the counterplan does. It is similar to an affirmative plan. You should not change it once you read it. Counterplans have fiat power, similar to the affirmative plan (this can be debatable).

Topicality. You should know whether or not your counterplan is topical. There are differing schools of thought on this issue. Some people think the counterplan needs to be non-topical because anything that is topical affirms the resolution. Other people think the counterplan can be topical because the fact that the counterplan does something different than the affirmative plan is key.

Competition. Competition explains why it is a forced choice between the affirmative plan and the negative counterplan. In other words, it explains why you can't or shouldn't enact both plans.

A counterplan is useless unless it competes with the affirmative plan. The counterplan can compete with the affirmative plan in several different ways.

Here are two major types of competition:

- **Mutually Exclusive.** If the counterplan and the plan are mutually exclusive it means you can't do them both at the same time.
- **Net Benefits.** A net benefit is an advantage for the counterplan but not the plan. A net benefit means you shouldn't do them both at the same time.

Most counterplans compete via net benefits. So the negative must win:

*the affirmative plan links to some offensive arguments such as a disadvantage *the counterplan does not link to that offensive argument

Affirmative Answers

We think that the affirmative should always make four answers to any counterplan. These answers form the acronym STOP.

S: Solvency

Affirmatives should argue that the counterplan does not solve the advantages of the 1AC. Affirmatives can also read new add-on advantages in the 2AC that only the United States federal government can solve.

T: Theory

Theory arguments are analytical arguments that often claim that counterplans are unfair or decrease the education of debate.

O: Offense

Affirmatives should also run offense to the counterplan. Offense can be additional advantages the counterplan cannot solve or disadvantages to the counterplan.

P: Permutation

In order for a counterplan to be legitimate it must be competitive with the affirmative plan. A permutation is a test of competition. When you permute the plan and the counterplan you do both the plan and the counterplan. If the permutation achieves an advantageous combination, the counterplan is not competitive. If the permutation fails, the counterplan is competitive. If the permutation fails, the affirmative does not have to defend it throughout the round. A permutation is only a test, not an advocacy.

Affirmatives permute the plan and the counterplan because the perm may be able to shield the affirmative plan from a link to the disadvantage

The most basic burden for a counterplan -- a negative proposal defended as an alternative to the affirmative plan -- is that it must compete. That is, for the counterplan and its advantages to count against the benefits of voting affirmative, they must constitute a reason to reject the plan. Although we have a tendency to think of competition (and even to teach it) by using the language of "competition standards" (which would obviously include the standards of mutual exclusivity and net benefit) the basic idea is more easily grasped by making an analogy to other concepts, and three in particular have had popularity. These are the ideas of opportunity cost, alternative worlds, and the disadvantage metaphor.

What Makes a Counterplan Competitive?

The opportunity cost idea is borrowed from basic economic theory. When we say a particular course of action creates certain opportunity costs, we are acknowledging that the total price of something is not captured simply by looking at its price tag. Beyond the list price, we must add up the costs of the foregone alternatives and count them as well. The total cost of a summer vacation, for example, includes the direct out-of-pocket costs one runs up (the airplane ticket, hotel, food, and so on) but it also includes opportunities made impossible by taking the vacation (such as the income one would have earned at a summer job by staying at home.)

The language of opportunity costs has always seemed appropriate to the counterplan competition question because the proposed alternative (e.g., having the states do the plan instead of the federal government) is not normally a direct cost of the plan -- that is, there is usually no indication the states are plotting to do the plan and will be diverted from their efforts by federal action. Instead, when run as a counterplan, state action presents decisionmakers with an explicitly named opportunity cost, since (if the evidence is to be believed) federal action tends to co-opt and subvert state incentives to act.

The competition question can also be understood as a kind of thought experiment where the status quo is imagined as one "world," and the status quo as modified by

the plan is imagined as another, slightly different world. Using such language, we can test whether the counterplan is a reason to reject the plan by asking a question: In the world as adjusted by the plan, should we or can we adopt the counterplan? Or we could put the question another way: In the world as adjusted by the counterplan, should we or can we adopt the plan?

Finally, the competition burden can be understood by analogizing the counterplan to a regular disadvantage. Although the vocabularies seem different, both disadvantages and counterplans specify costs of adopting the plan. Tracking the analogy out, one could say the disadvantage impact corresponds to the counterplan advantage, and the disadvantage link corresponds to the counterplan's competition claim. In the same way link evidence requires the negative to specify the connection between the plan and the negative consequences enumerated in the disadvantage impact, competition evidence forces the negative to connect their counterplan advantages (such as federalism or global federalism modeling) to the plan. If such a comparison seems artificial or forced, imagine the cards one would hear in a debate where federalism was run as a disadvantage, compared to the cards one might read in a state counterplan debate: the link and competition cards would be the same.

All three of these models raise interesting questions about the nature of counterplan debating. The opportunity cost metaphor forces us to attend to the nature of the counterplan choice: is the choice offered by the counterplan a genuine cost of the plan, or simply contrived? The plan/ counterplan "worlds" approach leads to different issues. Some years back Harvard debate coach Dallas Perkins argued counterplans were unfair to the affirmative and should be banned, basing his argument on this perspective. His point was that the counterplan competition question (to re-phrase it again: "having

adopted the counterplan, does it make sense to adopt the plan?") is never a winner for the affirmative, since the negative can always rig the world (with their counterplan) to make the plan either irrelevant or foolish. Finally, the

"counterplan as disadvantage" theory (championed many years ago by Bates debate coach Robert Branham) raises this issue, among others: if the link matches competition, and impact matches counterplan advantages, then what is the match for uniqueness? The answer, of course, is that the disadvantage uniqueness burden is magically solved by fiat. In a federalism disadvantage debate, the negative has to prove state action is happening now; when they counterplan with state action the magic wand of fiat produces instantaneous state action. Some have used this feature of the disadvantage-counterplan analogy to argue against the legitimacy of counterplans, on the view that negatives should have to prove an actual and not a rigged trade-off.

As counterplan strategy evolved, a very particular problem arose to which so-called "permutation theory" offers a cure. The problem was that some teams grew very adept at rigging their counterplans so they appeared to pose a genuine forced choice, when in fact the choice was artificial. One counterplan which enjoyed a brief popularity essentially stole the plan's funding. The text would read something like: "All money newly allocated to (fill in the blank with the plan's mandates) will be diverted to famine relief." The counterplan sounds like a genuine forced choice: after all, you can't spend the same money twice, and if the negative could read evidence that famine relief should be our greatest priority, they seem to have a winner: a counterplan both mutually exclusive (can't spend twice) and net beneficial (famine deaths > education reform).

But is famine relief really an opportunity cost of educational reform expenditures? Obviously in the political world of everyday budgeting the two items do not intersect except in the most unusual circumstances (as in a case where the educational expenses envisioned are so huge as to trade off with everything else.) Only the introduction of the counterplan creates or, some might say, trumps up, the choice. Or consider this even more blatantly artificial counterplan: "The federal government will develop a cure for AIDS. The affirmative plan is outlawed." Again, we seem to have a perfect counterplan: mutually exclusive

COUNTERPLAN PERMUTATIONS: THE BASICS

by David M. Cheshier

(can't pass and ban the plan at the same time) and net beneficial (AIDS cure > making kids read *Gone With the Wind*). But the choice presented by the counterplan is not genuine; in fact, it is completely contrived. How can the affirmative persuade the judge this is so?

The Permutation Alternative

The language of permutation theory gives affirmatives a vocabulary they can use to reveal the artificial competition of abusive counterplans. Permutations entered college debate competition during the mid-1980's; the idea was first written up in an essay by Boston College debate coach Dale Herbeck, in an article he wrote for *Argumentation & Advocacy*, the research journal of the American Forensic Association.

The term "permutation" can be a little confusing, since its usage in debate does not precisely mirror its use in mathematics. When an affirmative answers a counterplan by naming and defending a permutation, they are basically asking the judge to participate in a thought experiment. A permutation is an imagined policy combining the plan with some part of the counterplan to reveal why the counterplan's benefit claims should not count against the plan. So, were a team debating the two

abusive counterplans just described, they might respond to the first with: "Permute -- Do the plan and pay for famine relief." Or, with reference to the second: "Permute -- Do the plan and develop an AIDS cure."

One must be clear on what is being said when these words are spoken in a round. The affirmative is not defending a revised plan, or an amended proposal. Nor are they embracing the counterplan or any part of it (it is consistent for the 2AC to respond both with a permutation and by running disadvantages to the counterplan). A permutation is simply a thought experiment which reveals why the counterplans net benefit claims should not count as reasons to reject the plan. By offering a potential combination that gets the "best of both worlds," as it were, the affirmative illustrates why the counterplan is not a reason to reject its proposal.

In a certain sense, and this is a difficulty for some, one could say the permutation actually is advocated. After all, the thought experiment, though not literally defended by the affirmative as a 2AC plan amendment, does alter the judge's decision (*Cheshier from page 50*)

making calculation. Now, instead of comparing the plan alone with the counterplan alone, and voting for the one which produces the greatest benefit, the judge compares the permutation to the counterplan alone. If the permutation looks like the better of the two alternatives, she votes affirmative, since endorsement of the permutation thought experiment is also an endorsement of the plan it contains. If the affirmative defends the permutation as net beneficial, and the judge is only able to vote affirmative based on such a defense, could we not say it has been advocated? We'll return to this question shortly.

In the early days of permutation theory, Kentucky debate coach Roger Solt laid out a preliminary matrix of permutation types. Although he has modified this list in the years since, his first list lays out some of the important types still in use. The first type of permutation Solt called a "mechanical permutation." Here, a permutation is nothing more than a mechanical combination where the whole plan is attached to some part of or all of the counterplan. There is very little theoretical objection to such a combination, since in its purest form the mechanical permutation still requires the affirmative to defend their whole plan, and because it most plainly reveals the artificial nature of obviously abusive counterplans.

A second type Solt referred to as the "logical permutation." The logical permutation is necessary when the negative has artfully worded their counterplan so that a piece of its text cannot be simply lifted and attached to the plan (as with the "steal their funding" example). A counterplan which says "the affirmative's funding will be diverted to famine relief" cannot be mechanically attached to the plan since the wording presents no way to, say, lift the noncompetitive mandate and leave the other behind. And yet, although this counterplan appears to perform one clear move ("steal their money"), logically speaking it actually does two things. First, it steals the plan's money, then second, it puts money into famine relief. The logical permutation allows the affirmative to dissect the single mandate into its logical parts, and then attach one or more of those logical pieces to the plan. There is little objection to this sort of permutation either, since it is necessary to avoid the most sleazy counterplan texts.

In the third type, which one might call an "intrinsicness permutation," the affirmative combines their plan not with a piece of the counterplan, but with something entirely different, shall we say "pulled out of thin air." Imagine the plan builds nuclear

power plants, and the counterplan bans them, with the net benefit of slowing global nuclear weapons proliferation. The affirmative might try to permute with: "do the plan and convene a global disarmament conference." They might argue that this attachment to the plan solves the net benefit edge the counterplan appears to have over the plan, thereby proving the counterplan is not net beneficial. But they have done something arguably illegitimate by pulling their plan addition out of the air, rather than out of the counterplan text. Solt and many others believe this kind of permutation is unjustified theoretically: (1) like so-called "intrinsicness arguments" sometimes run by affirmative against

disadvantages, they are arguably unfair to the negative, since potential net benefit claims could always be "fixed" with a plan amendment; (2) intrinsicness permutations are arguably unfair since they cannot be anticipated by the negative -- how could they ever know what to expect as a 2AC addition?; and we could add to this list with the other objections routinely made against disadvantage minor repairs.

Some permutation Issues to Consider

Every so often, someone will make an attempt to discredit the entire idea of permutations by offering some theoretical objection to the concept. For the most part, these arguments have not been found persuasive. Some have argued affirmatives cannot "advocate" permutations because they are essentially unfair plan amendments, which make the plan a moving target. Others have objected on the grounds that permutations are essentially extra-topical plan additions.

The common answer to both of these concerns have been to stress how permutations are not really advocated by the affirmative. They are simply "tests" of competition, or, using my earlier language, "thought experiments." And, following language, most believe permutations are never actually defended by the affirmative: the 2AC can name and defend as many as s/he likes, and neither the 1AR or 2AR bear any responsibility for future permutation advocacy.

The "it's only a test" logic has proved persuasive, although it is not entirely airtight. Consider how the "test" rhetoric may mask what actually is hypothetical or conditional affirmative advocacy. What does it mean, after all, to say a debater advocates something? One way we could reply is to say a policy is advocated when a student

specifies a plan of action and then argues its net beneficiality. By such a definition, permutations are "advocated" -- debaters name a policy and say why the net benefits exceed those of the counterplan alone. And since the judge can only vote affirmative by imagining herself to vote for the permutation, is not the practice of permutations a kind of advocacy? Consider this as well: why couldn't a negative running twenty hypothetical or conditional counterplans use the same "test" language to justify his extreme practices? After all, how can we distinguish between the "conditional advocacy" offered for permutations from what might be said for multiple counterplans, where the negative might defend himself by declaring "each of these counterplans is simply a test of the plan's net desirability"? These questions are too often glossed over in the rush to embrace the often-useful, even necessary, permutation tool.

Some other issues, in my view more serious, have arisen as the use of permutations has grown. Consider these questions:

It is necessary that the permutation include the entire plan, or is it sufficient if it merely contains part of the plan? The consensus has been to oppose these so-called "severance" permutations, on the grounds that the affirmative is obliged to defend their entire plan throughout the debate, regardless of the counterplan under consideration. Such a view essentially nullifies the use of permutations against "exception" counterplans, where all but some tiny piece of the plan is implemented ("do the plan everywhere but on Native American lands"). But is this consensus justified? If the permutation is simply a "test," then might not the test be sufficient if any topical action survives the onslaught of the counterplan? And is it consistent to require the affirmative to defend their plan in its entirety and against all possible alternatives, when the negative's advocacy may only be conditional or dispositional?

Are time frame, or order of adoption permutations legitimate? Debate here is more divided. A time frame permutation is one where the plan and counterplan are sequenced, as in "implement Holocaust education for five years, then devolve it to the states afterward." Or we might consider the opposite sequencing, where the counterplan is done first, followed by the plan. Some believe time frame permutations destroy all counterplan ground (after all, even the most obviously contradicting policies can be made consistent through se-

quencing). But this objection is weak, since it ignores the obligation of the affirmative to specify the permutation net benefit, and coming up with a credible net benefit to the permutation of "banning, then mandating" can be quite difficult. A weightier objection is that some versions of time frame permutations are essentially intrinsicness permutations in disguise. Consider the case of a permutation which does the state counterplan first, and then follows it up with the federal plan mandates later. The net benefit might be that such sequencing sends the best-ever federalism signal (since the state action is seen as so brilliant even the federal government is persuaded to follow suit). But is the whole and original plan being defended, or has it been modified in the sequencing? And does the addition of the sequence end up adding a mandate contained neither in the plan nor the counterplan?

Many other issues might be raised about the limits of defensible permutation advocacy: Is there a limit on the number of permutations an affirmative can run? Does the affirmative ever have the right to defend permutations including anti-topical action? Can a permutation be defended as net beneficial, and kept "alive," even after the counterplan has been discarded? Does the net topicality of the permutation ever matter? Are there ever circumstances where a negative can force the affirmative to defend their awful permutations (e.g., if the negative only responds by running disadvantages to the permutation, can they stick the affirmative with it, in the same way affirmatives force negatives to defend dispositional counterplans by only arguing disadvantages against them?)?

For all these questions, the practice of permuting counterplans is by now well accepted. In fact, this acceptance has extended so far as to now justify the extension of permutation theory to critiques. As a result, debaters who hope to survive the exploding use of agent of action and exception counterplans must master the intricacies of permutation theory as well.

(David M. Cheshier is Assistant Professor of Communications and Director of Debate at Georgia State University. His column appears monthly in the Rostrum.)